3756

Executive Order.

Under authority of Article 63 of the Articles for the Government of the Navy (28 Stat. 689), the following limitations to the punishment of officers and enlisted men of the Navy and Marine Corps in time of peace, by naval courts-martial, for each separate offense, are prescribed and shall not be exceeded.

Offenses.	Limit of Punishment.
Under Article 3.	
Irreverent or unbecoming behavior during divine service.	Officer: To lose three numbers. Enlisted man: Confinement for three months and bad conduct discharge.
Under Article 4.	
Par: 1. Making, or attempting to make, or uniting with any mutiny or mutinous assembly, or being witness to or present at any mutiny, does not do his utmost to suppress it.	Officer: Dismissal and confinement for fifteen years. Enlisted man: Confinement for fifteen years and dishonorable discharge.
1. Knowing of any mutinous assembly or intended mutiny, does not immediately communicate his knowledge to his superior or commanding officer.	Officer: Dismissal and confinement for ten years. Enlisted man: Confinement for ten years and dishonorable discharge.
2. Disobeying the lawful orders of his superior officer.	Officer: Dismissal. Enlisted man: Confinement for two years and dishonorable discharge.
3. Striking his superior officer while in the execution of the duties of his office.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
3. Assaulting, or attempting or threatening to strike or assault his superior officer while in the execution of the duties of his office.	Officer: Dismissal and confinement for three years. Enlisted man: Confinement for three years and dishonorable discharge.
8. Sleeping upon his watch.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
9. Leaving his station before being regularly relieved.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
10. Intentionally or wilfully suffering a vessel of the Navy to be stranded, or run upon rocks or shoals, or improperly hazarded.	Officer: Dismissal and confinement for twenty years. Enlisted man: Confinement for twenty years and dishonorable discharge.
10. Maliciously or wilfully injuring any vessel of the Navy or any part of her tackle, armament or equipment, whereby the safety of the vessel is hazarded or the lives of the crew exposed to danger.	Officer: Dismissal and confinement for fifteen years. Enlisted man: Confinement for fifteen years and dishonorable discharge.
11. Unlawfully setting on fire or destroying public property not in possession of an enemy, pirate, or rebel.	Officer: Dismissal and confinement for fifteen years. Enlisted man: Confinement for fifteen years and dishonorable discharge.

Offenses.	Limit of Punishment.
Under Article 6.	
Par. Murder.	Officer: Death. Enlisted man: Death.
Under Article 8.	
1. Profane swearing.	Officer: Public reprimand. Enlisted man: Confinement for three months and bad conduct discharge.
1. Falsehood.	Officer: Dismissal. Enlisted man: Confinement for six months and dishonorable discharge.
1. Drunkenness:	
1. On duty.	1. Officer: Dismissal and confinement for one year. Enlisted man: Confinement for one year and dishonorable discharge.
2. Not on duty.	2. Officer: Dismissal. Enlisted man: Confinement for three months and bad conduct discharge.
1. Gambling.	Officer: Dismissal. Enlisted man: Confinement for three months and bad conduct discharge.
1. Fraud.	Officer: Dismissal. Enlisted man: Confinement for six months and dishonorable discharge.
1. Theft:	
1. Above one hundred dollars.	1. Officer: Dismissal and confinement for four years. Enlisted man: Confinement for four years and dishonorable discharge.
2. Between fifty and one hundred dollars.	2. Officer: Dismissal and confinement for eighteen months. Enlisted man: Confinement for eighteen months and dishonorable discharge.
3. Under fifty dollars.	3. Officer: Dismissal and confinement for one year. Enlisted man: Confinement for one year and dishonorable discharge.
1. Scandalous conduct tending to the destruction of good morals.	Officer: Dismissal and confinement for fifteen years. Enlisted man: Confinement for fifteen years and dishonorable discharge.

Note:—Where the offense proved under this charge is of similar nature to one given elsewhere in this table the court shall be guided by the limit there given.

Where an attempted or uncompleted offense is proved under this charge, the punishment must not exceed that authorized for the consummated offense.

Par.	
2. Cruelty toward or oppression or maltreatment of any person subject to his orders.	Officer: Dismissal. Enlisted man: Confinement for six months and dishonorable discharge.
3. Striking any person in the Navy:	
1. If the person struck is on duty, and is not a superior officer.	1. Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
2. If the person struck is not on duty and is not a superior officer.	2. Officer: To lose one hundred numbers. Enlisted man: Confinement for three months and bad conduct discharge.

Offenses.	Limit of Punishment.
Under Article 8 (continued)	
Par.	
3. If the person struck is a superior officer not in the execution of his office.	3. Officer: Dismissal and confinement for two years. Enlisted man: Confinement for two years and dishonorable discharge.
4. With a dangerous weapon and wounding.	4. Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
3. Quarreling with, assaulting, or using provoking or reproachful words, gestures, or menaces toward any person in the Navy:	
1. If the person quarreled with, etc., is on duty and is not a superior officer.	1. Officer: To lose fifty numbers. Enlisted man: Confinement for six months and bad conduct discharge.
2. If the person quarreled with, etc., is not on duty and is not a superior officer.	2. Officer: To lose five numbers. Enlisted man: Confinement for three months and bad conduct discharge.
3. If the person quarreled with, etc., is a superior officer not in the execution of his office.	3. Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
4. With a dangerous weapon. (Assault)	4. Officer: Dismissal. Enlisted man: Confinement for eighteen months and dishonorable discharge.
4. Endeavoring to foment quarrels between other persons in the Navy.	Officer: To lose five numbers. Enlisted man: Confinement for three months and bad conduct discharge.
5. Sending or accepting a challenge to fight a duel or acting as second in a duel.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
6. Treating his superior officer with contempt or being disrespectful to him in language or deportment while in the execution of his office.	Officer: Dismissal. Enlisted man: Confinement for eighteen months and dishonorable discharge.
7. Joining in or abetting any combination to weaken the lawful authority of, or to lessen the respect due to, his commanding officer.	Officer: Dismissal. Enlisted man: Confinement for two years and dishonorable discharge.
8. Uttering seditious or mutinous words.	Officer: Dismissal and confinement for one year. Enlisted man: Confinement for two years and dishonorable discharge.
9. Negligent or careless in obeying orders.	Officer: To lose ten numbers. Enlisted man: Confinement for three months and bad conduct discharge.
9. Culpably inefficient in the performance of duty.	Officer: Dismissal. Enlisted man: Confinement for six months and bad conduct discharge.
10. Not using his best exertions to prevent the unlawful destruction of public property by others.	Officer: Dismissal. Enlisted man: Confinement for two years and dishonorable discharge.
11. Through inattention or negligence suffering a vessel of the Navy to be stranded, or run upon a rock or shoal, or hazarded.	Officer: Dismissal. Enlisted man: Confinement for two years and dishonorable discharge.

Offenses.	Limit of Punishment.
Under Article 8 (continued).	
Par.	
12. When attached to any vessel appointed as convoy to any other vessel, fails diligently to perform his duty, or demands or exacts any compensation for his services, or maltreats the officers or crew of such other vessel.	Officer: Dismissal.
13. Taking, receiving, or permitting to be received on board the vessel to which he is attached any goods, or merchandise for freight, sale, or traffic, except gold, silver, or jewels for freight or safekeeping, or demanding or receiving any compensation for the receipt or transportation of any other article than gold, silver, or jewels, without authority from the President or the Secretary of the Navy.	Officer: Dismissal.
14. Knowingly making, signing, or aiding, abetting, directing, or procuring the making or signing of any false muster.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
15. Wasting any ammunition, provisions, or other public property, or having power to prevent it, knowingly permitting such waste.	Officer: Dismissal. Enlisted man: Confinement for two years and dishonorable discharge.
16. When on shore, plundering, abusing, or maltreating an inhabitant, or injuring his property in any way.	For any offense under this charge the limitation is the same as for the same offense given elsewhere in this table.
17. Failing or refusing to use his utmost exertions to detect, apprehend, and bring to punishment all offenders or to aid all persons appointed for that purpose.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
18. When rated or acting as master-at-arms refusing to receive such prisoners as may be committed to his charge, or having received them suffering them to escape, or dismissing them without orders from proper authority.	Enlisted man: Confinement for five years and dishonorable discharge.
19. Absent from his station or duty without leave, or after his leave has expired.	Officer: Dismissal. Enlisted man: Confinement for six months and bad conduct discharge, plus an additional period of confinement equal to the period of absence.
20. Violating or refusing obedience to any lawful general order or regulation issued by the Secretary of the Navy.	Officer: Dismissal. Enlisted man: Confinement for two years and dishonorable discharge.
21. Desertion:	
1. In case of surrender to naval authorities.	1. Officer: Dismissal and confinement for one year. Enlisted man: 1. If less than six months in the service: Confinement for one year and dishonorable discharge. 2. If six months or more in the service: Confinement for eighteen months and dishonorable discharge.

Offenses.	Limit of Punishment.
Under Article 8 (continued)	
Desertion—Continued.	
Par.	
2. In case of apprehension and delivery to naval authorities.	2. Officer: Dismissal and confinement for thirty months. Enlisted man: 1. If less than six months in the service: Confinement for eighteen months and dishonorable discharge. 2. If six months or more in the service: Confinement for two years and dishonorable discharge.
3. From a ship about to sail on an extended cruise.	3. Six months may be added to the period of confinement in each case under 1 and 2 above.
Note: There may be added to the period of confinement in each case above a period equal to the period of absence	
4. When joined in by two or more men in the execution of a conspiracy, or for desertion in the presence of an unlawful assemblage which the naval forces may be opposing.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
21. Attempting to desert.	Officer: Dismissal. Enlisted man: 1. If less than six months in the service: Confinement for six months and dishonorable discharge. 2. If six months or more in the service: Confinement for one year and dishonorable discharge.
21. Aiding or enticing others to desert.	Officer: Dismissal and confinement for four years. Enlisted man: Confinement for eighteen months and dishonorable discharge.
22. Receiving or entertaining any deserter from any other vessel of the Navy, knowing him to be such, and not with all convenient speed giving notice of such deserter to the commander of the vessel to which he belongs, or to the commander in chief, or to the commander of the squadron.	Officer: Dismissal.
Under Article 9.	
Absent from command without leave.	Officer: Dismissal.
Under Article 11.	
Procuring stores or other articles of supplies for, and disposing thereof to, the officers or enlisted men on vessels of the Navy, or at Navy yards or stations, for his own account or benefit.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.

Par.	Offenses.	Limit of Punishment.
	Under Article 14.	
1.	Presenting or causing to be presented to any person in the civil, military, or naval service for approval or payment any claim against the United States, or any officer thereof, knowing such claim to be false or fraudulent.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
2.	Entering into any agreement or conspiracy to defraud the United States by obtaining or aiding others to obtain the allowance of any false or fraudulent claim.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
3.	Making or using, or procuring or advising the making or using, of any writing or other paper, knowing the same to contain any false or fraudulent statement, for the purpose of obtaining or aiding others to obtain the approval, allowance, or payment of any claim against the United States or against any officer thereof.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
4.	Making or procuring or advising the making of any oath to any fact or to any writing or other paper, knowing such oath to be false, for the purpose of obtaining or aiding others to obtain the approval, allowance, or payment of any claim against the United States or any officer thereof.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
5.	Forging or counterfeiting, or procuring or advising the forging or counterfeiting, of any signature upon any writing or other paper, or using or procuring, or advising the using of any such signature, knowing it to be forged or counterfeited, for the purpose of obtaining or aiding others to obtain the approval, allowance, or payment of any claim against the United States or any officer thereof.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
6.	Knowingly delivering or causing to be delivered to any person having authority to receive the same any amount of money or other public property of the United States furnished or intended for the naval service less than that for which he receives a certificate or receipt.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
7.	Knowingly making or delivering to any person a paper certifying the receipt of any money or other property of the United States furnished or intended for the naval service thereof without having full knowledge of the truth of the statement therein contained and with intent to defraud the United States.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.

Offenses.	Limit of Punishment.
Under Article 14 (continued)	
Par.	
8. Stealing, embezzling, knowingly and wilfully misappropriating and applying to his own use and benefit, or unlawfully selling or disposing of any ordnance, arms, equipments, ammunition, clothing, subsistence stores, money, or other property of the United States, furnished or intended for the military or naval service thereof.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
9. Knowingly purchasing or receiving in pledge, for any obligation or indebtedness from any other person who is a part of or employed in the naval service any ordnance, arms, equipment, ammunition, clothing, subsistence stores or other property of the United States, such other person not having lawful right to sell or pledge the same.	Officer: Dismissal and confinement for two years. Enlisted man: Confinement for two years and dishonorable discharge.
10. Executing, attempting, or countenancing any other such fraud against the United States.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
Under Article 19.	
Knowingly enlisting into the naval service any person who has deserted in time of war from the naval or military service of the United States, or any insane or intoxicated person, or any minor between the ages of fourteen and eighteen years without the consent of his parents or guardian, or any minor under the age of fourteen years.	Officer: Dismissal.
Under Article 22.	
Affray and disorder, riot, rout, or unlawful assembly.	Officer: Dismissal and confinement for three years. Enlisted man: Confinement for three years and dishonorable discharge.
Answering for another at muster.	Enlisted man: Confinement for three months and bad conduct discharge.
Attempting to destroy government property.	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
Behaving contumaciously before a court or board.	Officer: To lose ten numbers. Enlisted man: Confinement for three months and bad conduct discharge.
Blackmail.	Officer: Dismissal and confinement for one year. Enlisted man: Confinement for one year and dishonorable discharge.
Breaking arrest.	Officer: Dismissal and confinement for one year. Enlisted man: Confinement for two years and dishonorable discharge.

Offenses.	Limit of Punishment.
Under Article 22 (continued)	
Par. Breaking quarantine.	Officer: To lose five numbers. Enlisted man: Confinement for three months and bad conduct discharge.
Burglary or housebreaking.	Officer: Dismissal and confinement for ten years. Enlisted man: Confinement for ten years and dishonorable discharge.
Carelessly or negligently endangering the lives of others.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
Conduct to the prejudice of good order and discipline.	Officer: Dismissal and confinement for fifteen years. Enlisted man: Confinement for fifteen years and dishonorable discharge.
Note:—Where the offense proved under this charge is of similar nature to one given elsewhere in this table the court shall be guided by the limit there given. Where an attempted or uncompleted offense is proved under this charge, the punishment must not exceed that authorized for the consummated offense.	
Conduct unbecoming an officer and a gentleman.	Officer: Dismissal.
Concealing a venereal disease.	Officer: Dismissal. Enlisted man: Confinement for six months and bad conduct discharge.
Criminal trespass.	Officer: Dismissal and confinement for one year. Enlisted man: Confinement for one year and dishonorable discharge.
Embezzlement (not against the United States).	
1. Above one hundred dollars.	1. Officer: Dismissal and confinement for four years. Enlisted man: Confinement for four years and dishonorable discharge.
2. Between fifty and one hundred dollars.	2. Officer: Dismissal and confinement for eighteen months. Enlisted man: Confinement for eighteen months and dishonorable discharge.
3. Under fifty dollars.	3. Officer: Dismissal and confinement for one year. Enlisted man: Confinement for one year and dishonorable discharge.
False imprisonment.	Officer: Dismissal and confinement for two years. Enlisted man: Confinement for two years and dishonorable discharge.
Forgery (not against the United States).	Officer: Dismissal and confinement for three years. Enlisted man: Confinement for three years and dishonorable discharge.
Fraudulent enlistment.	Enlisted man: Confinement for one year and dishonorable discharge.

Offenses.	Limit of Punishment.
Under Article 22 (continued)	
Par. Libel.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
Malingering.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
Neglect of duty.	Officer: Dismissal. Enlisted man: Confinement for six months and bad conduct discharge.
Resisting arrest.	Officer: Dismissal. Enlisted man: Confinement for one year and dishonorable discharge.
Seduction.	Officer: Dismissal and confinement for one year. Enlisted man: Confinement for one year and dishonorable discharge.
Sodomy.	Officer: Dismissal and confinement for twelve years. Enlisted man: Confinement for ten years and dishonorable discharge.
Unauthorized use of vehicles, boats, etc., not property of the United States.	Officer: Dismissal and confinement for three years. Enlisted man: Confinement for three years and dishonorable discharge.
Uttering (not against the United States)	Officer: Dismissal and confinement for three years. Enlisted man: Confinement for three years and dishonorable discharge.
Wilful destruction of property (not of the United States)	Officer: Dismissal and confinement for five years. Enlisted man: Confinement for five years and dishonorable discharge.
Any offense in the Act of Congress approved March 4, 1909 (38 Stat. 1088), entitled "An Act to codify, revise, and amend the penal laws of the United States", or in any other general statute of the United States, which is not specified in the Articles for the Government of the Navy.	Officer: Dismissal and confinement for the period named in the statute as the maximum period of imprisonment. Enlisted man: Confinement for the period named in the statute as the maximum period of imprisonment and dishonorable discharge.

Note:—Where the statute does not prescribe any period of imprisonment, dismissal or discharge shall not be adjudged, but loss of numbers not to exceed ten, or confinement not to exceed three months, may be adjudged.

Where the statute prescribes the punishment of death, and a naval court-martial is not authorized by the Articles for the Government of the Navy to adjudge the punishment of death for the offense, the limit of punishment shall be dismissal or dishonorable discharge and confinement for life.

In any case where a deposition is used by the prosecution the maximum confinement which may be adjudged is one year.

In all cases where the limitations of punishment provide for confinement, hard labor during such confinement is included.

In the case of an enlisted man, loss of pay and allowances that may become due during the current enlistment of the convicted man, and reduction to inferior rating or rank, may be added to the foregoing limitations.

This table shall become operative on February 1, 1923.

WARREN G HARDING

THE WHITE HOUSE,
Nov. 17, 1922.

[No. 3756.]

GOVERNMENT PRINTING OFFICE